Contents

3. GENERAL CONSIDERATIONS 3.1
3.1 CUMULATIVE IMPACTS LEP 2000 Cl 8(b) 3.1
PO 3.1-1 PLANNING OUTCOMES - CUMULATIVE IMPACT 3.2
3.2 SCENIC, LANDSCAPE AND URBAN AREAS LEP 2000 Cl 8(c) 3.2
PO 3.2-1 PLANNING OUTCOMES - SCENIC, LANDSCAPE AND URBAN AREAS 3.2
3.3 ENERGY EFFICIENCY LEP 2000 CLAUSE 8(d) 3.3
PO 3.3-1 PLANNING OUTCOMES - ENERGY EFFICIENCY 3.3
3.4 WASTE GENERATION LEP 2000 CLAUSE 8(e) 3.3
CONSTRUCTION AND DEMOLITION WASTE 3.3
PO 3.4-1 PLANNING OUTCOMES – WASTE GENERATION 3.4
3.5 TEMPORARY USE OF LAND LEP 2000 Cl 9 ..... 3.5
PO 3.5-1 PLANNING OUTCOMES - TEMPORARY USE OF LAND 3.5

3. GENERAL CONSIDERATIONS

3.1 CUMULATIVE IMPACTS LEP 2000 Cl 8(b)

In determining development applications, Council will consider not only the direct impacts of a particular development but also whether the development, when carried out in conjunction with other development in the locality, has a more significant environmental impact.

For example, in rural areas cumulative impacts may occur as a consequence of residential development locating in close proximity to other dwellings and agriculture. Issues such as effluent disposal, road and traffic impacts, distance between houses and other land use should be considered.

In urban areas, the amenity of a residential area may be affected by a concentration of non-residential uses. Residential units and dual occupancy should also be located and designed in a way that fits in with the predominant low-density character of the City's residential areas.

A number of industrial developments in proximity to housing areas can contribute to increased noise even though individually the noise generated from each industry may be within reasonable levels. The EPA *Industrial Noise Policy* identifies maximum ambient noise levels from industrial noise sources.

Development under this Plan is also encouraged to conserve water to ensure that the City's water resources continue to be able to meet the City's needs.

The NSW Government's Sustainable Energy Development Authority (SEDA) promotes "energy smart" design in developments as part of SEDA's mission to reduce the level of greenhouse gas emissions in New South Wales by investing in the commercialisation and use of sustainable energy technologies.

From 1 July 2005, it is proposed that the Department of Infrastructure, Planning and Natural Resources sustainable building tool, "BASIX" water and energy targets, will be a mandatory part of the development approval process for all new residential developments in Orange.

Developments approved from July 2005 will be expected to achieve a BASIX rating of 40 for water conservation, representing a potential reduction of potable water consumption of 40%.

PO 3.1-1 PLANNING OUTCOMES - CUMULATIVE IMPACT

1 Applications for development demonstrate how the development relates to the character and use of land in the vicinity.
2 The introduction of new development into a locality maintains environmental impacts within existing or community-accepted levels.
3 Water conservation measures are implemented.

RELATED INFORMATION – CUMULATIVE IMPACTS

1 Environment Protection Authority 2000. ***NSW Industrial Noise Policy***. EPA. Sydney
2 EPA Industrial Noise Guidelines

3.2 SCENIC, LANDSCAPE AND URBAN AREAS
LEP 2000 Cl 8(c)



Photograph - The urban, rural and natural landscapes of Orange

The urban character of the City is represented by a central area of established gardens, avenues of exotic street trees, formal town parks and informal park networks along creeks. Informal landscaping increases with a greater emphasis on native plants in parks and gardens in suburban areas. Forested ridgelines flank the urban area. The rural landscape comprises a mix of native and exotic species set amongst orchards, vineyards and crop and pasture land.

In the urban area, consideration should be given to the character of the locality, whether that locality is recognised as having heritage character with formal plantings of exotic trees or whether the locality comprises areas developed as suburban release areas where informal native planting is common.

In scenic rural areas, the contribution of trees to the special landscape quality of the area should be recognised and development should retain and enhance the landscape character reflected in shelter belts of introduced species (such as hawthorn and pine species), native remnant vegetation, ornamental plantings set amongst orchards, grazing areas and vine plantings.

NOTE In scenic areas, new buildings should be situated below the ridgeline or otherwise visually contained within treed ridgelines when viewed from adjacent roads and public places. In this way, new development fits within the landscape.

PO 3.2-1 PLANNING OUTCOMES - SCENIC, LANDSCAPE AND URBAN AREAS

1 Development incorporates landscaping that enhances the landscaped setting of the locality.
2 External finishes, materials and colour schemes of development complement its setting.

3.3 ENERGY EFFICIENCY LEP 2000 CLAUSE 8(d)

Council encourages development that facilitates an efficient use of resources. Development that incorporates energy-efficient design and operations provides environmental and economic benefits.

The NSW Government's Sustainable Energy Development Authority (SEDA) promotes "energy smart" design in developments as part of SEDA's mission to reduce the level of greenhouse gas emissions in New South Wales by investing in the commercialisation and use of sustainable-energy technologies.

From 1 July 2005, it is proposed that the Department of Infrastructure, Planning and Natural Resources sustainable building tool, "BASIX" water and energy targets, will be a mandatory part of the development approval process for all new residential developments in Orange from 1 July 2005.

It is currently expected that developments approved from July 2005 (in Orange) will be required to achieve a BASIX rating of 25 for energy conservation, representing a potential reduction of greenhouse gases by 25%. This target will be increased in July 2006 to 40 for energy conservation, which is projected to achieve a 40% reduction in greenhouse gases.

Developments will effectively meet this standard if they include an efficient hot-water system and a well-designed house to make the most of natural cooling, heating and lighting. By meeting the set targets, people will be reducing the number of days and hours air conditioners are being used.

PO 3.3-1 PLANNING OUTCOMES - ENERGY EFFICIENCY

1 Development is carried out in accordance with the principles from Council's **Energy Smart Homes Code.**

RELATED INFORMATION – ENERGY EFFICIENCY

1 Orange City Council. Energy Smart Homes Code
2 SEDA energysmart web page
3 Building Regulation Advisory Notes (BRANs) No 226 and 227 Building Regulation Advisory Notes
4 DIPNR Building Sustainability Index (BASIX) web page.

NOTE Volume 2 of the Building Code of Australia (Housing Provisions) (Amendment No.12) relating to energy-efficiency requirements is proposed to apply to all of NSW in May 2004.

3.4 WASTE GENERATION LEP 2000 CLAUSE 8(e)

In response to concerns about increasing volumes of waste being generated, the NSW Government introduced the *Waste Minimisation and Management Act 1995*, which sets out a new framework for managing waste.

The main aims of the Act were to:

- reduce waste to landfill by 60% by the year 2000 (measured at 1990 rates)
- promote the waste-management hierarchy of avoid, reuse, recycle and dispose.

CONSTRUCTION AND DEMOLITION WASTE

Statistics indicate that building waste contributes up to 1.5 million tonnes of waste to landfill each year. 55% of this waste stream is generated by demolition work and 40% by construction work

The table on the following page indicates the Reuse and Recycling Potential of Construction and Demolition Materials:

PO 3.4-1 PLANNING OUTCOMES – WASTE GENERATION

1 Applications involving demolition indicate measures that will be implemented for reuse and recycling of waste materials.

2 Development involving demolition is carried out in a manner that optimises reuse and recycling of waste materials consistent with waste-minimisation principles (refer table below).

RELATED INFORMATION – WASTE GENERATION

EPA Waste web page

MATERIALS	PROCESS		END USE	POTENTIAL
Concrete	Crushed	Recycled	Fill, levelling, road base	100%
Surplus pour	Use up	Pavers, slabs		High
Bricks	Cleaned	Reused	Construction	100%
	Crushed	Recycled	Landscaping, driveways, drains	100%
Roof tiles	Cleaned	Reused	Roofing, landscaping	100%
	Crushed	Recycled	Landscaping, driveways, drains	100%
Plasterboard (clean)	Reprocessed	Recycled	New plasterboard	100%
Hardwood beams de-nailed	Reuse		Flooring, furniture, fencing, craft	100%
Other timber	Cleaned Ground	Reuse	Formwork, bridging, propping, landscaping, woodflour (oil spills)	High 100%
Doors, windows	Cleaned	Reuse	Second-hand market	Market driven
Fittings	Cleaned up	Reuse	Second-hand market	Market driven
Glass	Crushed	Recycled	Aggregate for concrete products	100%
Unbroken		Reuse	Repairs, glazing, glass houses	100%
Carpet – wool		Reuse	Mulch, landscaping	
Underfelt – natural	Reuse		Compost cover, mulch, landscaping	High
Synthetic rubber (as in underlay)	Shredded	Recycled	Safety barriers, speed humps	New markets
Trees	Relocated	Reuse	Landscaping on or off site	100%
Greenwaste	Shredded	Recycled	Compost, mulch, fertiliser	100%
Soil	Screened	Reuse	Topsoil	100%
Metals: aluminium, copper, lead, zinc, steel	Scrap metal	Recycled	New metal products	100%
Packaging: Cardboard		Recycled	New packaging	100%
Plastic/steel drums	Cleaned		Reused	
Metal strapping	Reused		Return to supplier	High
Paint tins		Recycled	Tin extracted	200%

Demolition Contractors are advised to investigate all opportunities to divert salvageable products from the waste stream.

To minimise disposal costs when delivering waste to Council's Ophir Road Resource Recovery Centre, contractors are encouraged to segregate their waste from recyclable and clean-fill material prior to arriving at the facility.

3.5 TEMPORARY USE OF LAND LEP 2000 Cl 9

Land may be used for development on a temporary or irregular basis. Temporary-use provisions were considered necessary in Orange LEP 2000 to provide particularly for major social, cultural or entertainment events of limited duration.

The temporary use of sites in Orange has included uses such as markets, fairs, circuses, motor shows, exhibitions, antique auctions, sales and displays.

The 52-day limit equates to an average occurrence of one day per week, such as the Sunday markets, but can be carried out on consecutive days provided that the use occurs for no more than 52 days in any one year. Council may consider a lesser period to be appropriate for a development depending on the specific circumstances of that activity.

PO 3.5-1 PLANNING OUTCOMES - TEMPORARY USE OF LAND

1 The land used for temporary use is provided with all necessary services to meet the anticipated demand. Applications demonstrate to Council's satisfaction that arrangements have been made for the provision of all necessary services including water supply, public amenities, car-parking facilities and electricity at the operator's cost.

2 Public-liability insurance is obtained by the operator for a minimum cover of $10 million dollars or greater amount if determined necessary by Council for the temporary use of public land, places or roads.

3 The approval of Council is obtained for any temporary road closures required in association with the use. The operator is responsible for all costs associated with any road closures.

4 All approvals under the section 68 of the *Local Government Act 1993* are granted for temporary use of Community land.

5 Applications for temporary development in the vicinity of residential areas demonstrate that the amenity of the area will not be adversely affected by intrusion from noise, night lighting or traffic.

RELATED INFORMATION – TEMPORARY USE OF LAND

Department of Local Government, 1998, ***Major and Special Events, An Overview: A guide for Promoters and Councils***. Events Guide

(next page is Page 4.1)